
**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULING AND ORDER ON
DEFENDANT'S OBJECTIONS TO
ELECTRONIC MEDIA REQUESTS**

Case No. 251403576

Judge Tony F. Graf, Jr.

Before the court are Defendant Tyler James Robinson's objections to various media outlets' requests for electronic media coverage of the preliminary hearing, which is scheduled from July 6 through 10, 2026.

On June 18, 2026, KSL filed a request for live streaming of each day of the preliminary hearing. (Dkt. 612). On June 22, 2026, the Associated Press filed a request to photograph the preliminary hearing on July 9, 2026. (Dkt. 641). On June 22, 2026, the Salt Lake Tribune filed a request to photograph the preliminary hearing on July 7, 2026. (Dkt. 633). On June 23, the Deseret News filed a request to photograph the preliminary hearing on July 6, 8, and 10, 2026. (Dkt. 634).

On June 21, 2026, Defendant objected to KSL's request for live streaming. (Dkt. 623). On June 24, 2026, Defendant objected to the remaining three requests. (Dkts. 635, 642, 644). The News Media responded to the objection to live streaming on June 24, 2026. (Dkt. 637). The News Media responded to the remaining objections on June 25, 2026. (Dkt. 651).

In addition to the briefing provided by Defendant and the News Media on the current electronic media requests, the court has also reviewed the record of the evidentiary hearing held

on April 17, 2026, and its associated briefing. Now being fully advised, the court enters the following Ruling and Order on each of Defendant's objections.

Discussion

Defendant's objections to the electronic media requests are identical with one exception: Defendant argues that the Deseret News's request for still photography of the proceedings on July 6, 2026, is untimely. The court ordered that all media requests should be filed at least 14 days before the proceeding, and the Deseret News filed its request only 13 days before July 6. Because the Deseret News has not shown good cause for its failure to file a request timely, the court SUSTAINS Defendant's objection to the still photography request for July 6, 2026. The Deseret News's requests for still photography on July 8 and 10 are timely.

Defendant raises the remainder of his objections to electronic media coverage under rule 4-401.01 of the Utah Rules of Judicial Administration and state and federal constitutional provisions, including the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution and to article I, sections 7 and 12 of the Utah Constitution.

1. Legal Standards

Members of the news media have the constitutional right to access criminal proceedings, but do not have a constitutional right to photograph or video record public hearings and trials. *See Nixon v. Warner Communications, Inc.*, 435 U.S. 589 (1978). Defendant, on the other hand, has a constitutional right to a fair trial and all associated rights, including the right to due process, the effective assistance of counsel, and trial by an impartial jury.

"Due process requires that the accused receive a trial by an impartial jury free from outside influences. Given the pervasiveness of modern communications and the difficulty of effacing prejudicial publicity from the minds of the jurors, the trial courts must take strong measures to

ensure that the balance is never weighed against the accused.” *Sheppard v. Maxwell*, 384 U.S. 333, 362 (1966). “Where there is a reasonable likelihood that prejudicial news prior to trial will prevent a fair trial,” the court must take remedial measures to abate any threat to the fairness of the proceedings. *Id.* at 363. Remedial measures may include, but are not limited to, proscribing extrajudicial statements by lawyers representing the parties, decorum orders, changing the venue of the trial, allowing for continuances, and limiting electronic media coverage. *See id.*

In Utah, Rule 4-401.01 creates a rule-based presumption in favor of electronic recording by members of the news media, as long as the purpose of the electronic coverage is for journalism and the dissemination of the news to the public. Utah R. Jud. Admin. 4-401.01(2)(A). Even if the presumption of electronic media coverage exists, the presumption can be overcome if there are sufficiently compelling reasons to outweigh the presumption. *Id.* These reasons include, among others,

- (i) whether there is a reasonable likelihood that electronic media coverage will prejudice the right of the parties to a fair proceeding;
- (ii) whether there is a reasonable likelihood that electronic media coverage will jeopardize the safety or well-being of any individual;
- ...
- (iv) whether there is a reasonable likelihood that electronic media coverage will constitute an unwarranted invasion of personal privacy of any person;
- (v) whether electronic media coverage will create adverse effects greater than those caused by media coverage without recording or transmitting images or sound;
- ...
- (vii) the public interest in and newsworthiness of the proceeding;

- (viii) potentially beneficial effects of allowing public observation of the proceeding through electronic media coverage; and
- (ix) any other factor affecting the fair administration of justice.

Utah R. Jud. Admin. 4-401.01(2)(B).

When ruling on an electronic media request under rule 4-401.01, the court must make “particularized findings” that relate to the “specific circumstances of the proceeding rather than reflect generalized views or preferences.” Utah R. Jud. Admin. 4-401.01(2)(C)-(D). The court applies these standards separately to KSL’s livestreaming request and to each still-photography request. This order is limited to the July 6–10, 2026 preliminary hearing; it does not decide electronic coverage of trial or later proceedings. The court may modify, suspend, or further limit electronic coverage if changed circumstances or a specific objection shows a concrete risk to fairness, safety, privacy, privilege, witness well-being, or orderly administration.

In examining each objection to electronic media requests, the court will determine 1) whether Defendant has shown a “reasonable likelihood” that his right to a fair trial will be violated under *Sheppard*; and 2) whether there are sufficiently compelling reasons to exclude electronic media coverage under rule 4-401.01.

2. Defendant’s Remaining Objections

In support of his argument that electronic media coverage of the preliminary hearing will create a reasonable likelihood that Defendant’s right to a fair trial will be violated, Defendant cites the record of the April 17, 2026, evidentiary hearing testimony and briefing related to his motion for a blanket exclusion of electronic media coverage from the courtroom [hereinafter “Motion to Exclude”]. *See* dkts. 305, 399. In the court’s prior order denying Defendant’s Motion to Exclude, the court summarized the evidence presented at the hearing:

At Defendant's request, the court held an evidentiary hearing where Dr. Bryan Edelman, a trial consultant, and Dr. Christine Ruva, a cognitive psychologist, testified in support of Defendant's motion. Dr. Edelman conducted a survey of 200 people in Utah County and prepared a report with his assessment of the local community's consumption of media coverage of this case. His base findings reveal that 99 percent of community members recognize the case and 64 percent believe Defendant is guilty based upon what they have heard, read, or seen in the media. Hr'g Trans. April 17, 2026, at 122-23.

He examined press coverage of the hearings that have taken place since Defendant's initial appearance in court and discovered that only about 25 percent of viewers watch the live stream of court hearings. Hr'g Trans. April 17, 2026, at 112, 126. A majority of the remaining viewers consume media commentary of the live stream recordings over social media and local television news sources. *Id.* at 126. According to his research, the commentary from established news media does not provide a neutral summary of court proceedings. Rather, headlines and "talking heads" typically focus on out-of-court statements made by attorneys and prominent members of the community and the country. As a result, viewers are led to believe that comments made *out of court*, such as comments about unadmitted evidence, are made during a court hearing and part of the criminal case. *Id.* at 103-04. According to Dr. Edelman, this commentary primarily supports the prosecution's narrative and is used as entertainment, sensationalism, and commercialization rather than to educate the public on what is occurring during the court proceedings. *Id.* at 103- 17.

Dr. Edelman also expressed concern that media coverage of the security measures used during court proceedings, combined with cameras in the courtroom, will be added pressure on the potential jury pool and contribute to potential jurors' reluctance to serve on a future jury. *Id.* at 118.

During cross-examination, Dr. Edelman testified that viewers who watch the live stream, usually on social media and streaming sites, are inundated with commentary from other viewers spreading misinformation. Although the commentary is being made by the public and is not generated by the live stream itself, in his view, the commentary would not exist without the live stream of the court proceedings. *Id.* at 154-56. In sum, Dr. Edelman's opinion is that continued electronic media coverage of court proceedings will perpetuate prejudicial and misleading views of the Defendant and the evidence and affect Defendant's fair trial rights.

Dr. Ruva testified that she specializes in the study of juror decision-making, specifically how pre-trial publicity affects memory and the deliberative process. *Id.* at 168. Among other concepts, her studies focus on "source primacy" of pre-trial publicity, which indicates that if jurors are front-loaded with an extensive amount of negative pre-trial publicity toward a defendant, it is difficult to overcome their initial biases, even if presented with positive publicity about the defendant or negative publicity about an alleged victim. *Id.* at 170. Dr. Ruva examined the pre-trial publicity referenced in Defendant's motion, which she summarized as provoking moral outrage and predominantly "anti-defendant," full of dehumanizing language and accusations of guilt. *Id.* at 171.

Dr. Ruva explained that jurors have “a high amount of confidence” that the information they use to reach a verdict is based on evidence that was presented at trial; however, research shows that jurors’ memories cannot distinguish between what was heard at trial and what was heard from pre-trial publicity. *Id.* at 174. Jurors may even unconsciously distort evidence they hear during trial to align it with slanted information they heard pre-trial. *Id.* at 186. Because video and audio sources of pre-trial publicity result in more emotional responses, these sources are better remembered than other sources of information. *Id.* at 176. In sum, Dr. Ruva’s expert opinion is that “live-streaming of all proceedings can lead to deep-seated bias” in juror deliberations. *Id.* at 183. And while juror questionnaires can help eliminate jurors with *explicit* biases, they are not effective at identifying *implicit* biases. *Id.* at 193-94.

Dr. Ruva concluded with her expert opinion that “to a reasonable degree of psychological certainty[,] this case is situated within a highly prejudicial pretrial environment that presents a substantial risk to juror impartiality.” *Id.* at 196.

Prior Order at 1-4 (Dkt. 535).

Defendant argues that allowing livestreaming and still photography of the hearing will a) perpetuate bias against him in the public; b) allow the dissemination of hearsay evidence under rule 1102 that may not be admissible at trial, c) distract and add pressure to trial participants, d) impose on witnesses and participants who have privacy or security concerns, and e) allow exhibits that are not part of the court record to be disseminated to the public. Defendant also re-raises his continuing objection to the court’s May 8, 2026, order allowing briefing on electronic media requests, Dkt. 535. That objection is preserved, but it does not alter the court’s analysis of the specific requests now before it.

At this stage, the court distinguishes between livestreaming and still photography. KSL’s request involves continuous audio and video transmission, which presents greater potential for republication and commentary. The still-photography requests involve discrete visual images on specified hearing dates and do not transmit testimony or argument. For both categories, the preliminary hearing remains subject to the court’s decorum order, camera-placement restrictions, evidentiary rulings, and exhibit-specific limitations. The proceeding is highly newsworthy and of

substantial public interest, and public observation may assist accurate understanding of what occurs in court. On the present record, Defendant has shown serious concern about pretrial publicity generally, but has not shown that these controlled forms of electronic coverage, as limited by this order, create adverse effects greater than coverage by reporters attending without recording.

a. Defendant has not shown that electronic media coverage will perpetuate bias against him

This case has received extensive public attention. According to Dr. Edelman, 99 percent of people living in Utah County have heard of it and 64 percent have already formed an opinion that Defendant is guilty based upon what they have heard, read, or seen in the media. Prominent high-ranking public officials including President Trump, Vice-President Vance, then-Attorney General Bondi, FBI Director Patel, then-Deputy Director Bongino, and Governor Cox made public statements concerning Defendant's alleged culpability in the days immediately before and after he was charged with the aggravated murder of Charlie Kirk. These statements, and others made by prominent media and political personalities, had widespread coverage across various platforms. The court refers to these statements only to assess the publicity environment and not as evidence of Defendant's guilt, the truth of any assertion, or the admissibility of any matter at trial.

Mainstream news sources, independent news sources, and social media platforms have been saturated with information and misinformation about this case, including conspiracy theories, rumors, and disparaging and inflammatory comments about both Defendant and Mr. Kirk. Defendant argues that electronic media coverage of the preliminary hearing will encourage more dialogue and perpetuate the bias and misinformation that has saturated the public sphere. This is especially true given that many internet commentators and media sources merely play the

livestream of court proceedings in the background while they discuss the case. Relatively few people, approximately 25 percent of Utah County residents, actually watch the livestream itself.

Defendant is entitled to the presumption of innocence and a trial by a fair and impartial jury. The amount and quality of pre-trial publicity this case has generated is concerning. The court has taken remedial measures to reduce potential prejudice by issuing and enforcing an order preventing the attorneys from making extrajudicial statements that could materially affect the proceedings; moving cameras to the back of the courtroom to protect against the violation of Defendant's right to the effective assistance of counsel, and issuing and enforcing a detailed decorum order. How the media, public officials, conspiracy theorists, internet commentators, and other members of the public speak about the proceedings outside of the courtroom is beyond the authority of the court to regulate.

The court finds that substantial public commentary about this case is likely to continue whether or not electronic coverage is allowed. The relevant question is therefore not whether publicity can be eliminated. It is whether the requested coverage, under court-imposed limits, creates a reasonable likelihood of prejudice or sufficiently compelling reasons for exclusion. On this record, controlled livestreaming and still photography may reduce reliance on secondhand or inaccurate descriptions by allowing the public and journalists to observe the same proceedings subject to the court's decorum order, camera-placement restrictions, evidentiary rulings, and exhibit limitations. The court does not rely on a generalized preference for electronic access; it finds that the specific benefits of accurate public observation of this preliminary hearing outweigh the incremental prejudice Defendant has identified from the requested coverage itself.

In sum, the preliminary hearing is likely to generate extensive public discussion about Defendant. Defendant has shown a substantial risk of prejudicial publicity generally, but has not

shown on this record a reasonable likelihood that the requested controlled coverage—separate from publicity likely to occur regardless—will prejudice his fair-trial rights. Nor has Defendant shown sufficiently compelling reasons under Rule 4-401.01 to exclude the requested coverage, subject to the limitations and continuing supervision described in this order. The court has considered less restrictive alternatives to exclusion, including enforcement of the extrajudicial-statement order, courtroom decorum requirements, camera placement away from counsel communications, exhibit-specific restrictions, witness-specific objections, and suspension of coverage if necessary. At this preliminary-hearing stage, those measures adequately address the risks identified in Defendant’s objections without imposing a blanket prohibition on electronic coverage. Nothing in this order limits the court’s ability to consider later remedies directed to jury impartiality, including voir dire procedures, juror questionnaires, admonitions, continuance, sequestration, venue, or other measures supported by the record at the appropriate time.

Accordingly, Defendant’s objection to electronic media coverage on the basis of the perpetuation of bias is overruled under both *Sheppard* and rule 4-401.01.

b. Defendant has not shown that electronic media coverage of Rule 1102 evidence will prejudice his right to a fair trial

Defendant represents that the State will present evidence through rule 1102 that may not be admissible at trial to support probable cause. But Defendant has not specified what hearsay evidence may be presented that would violate his rights. Without some specificity, the court cannot determine whether there is a reasonable likelihood that the evidence will prejudice Defendant’s right to a fair proceeding under *Sheppard* and Rule 4-401.01. This ruling is without prejudice to a renewed, evidence-specific objection before particular Rule 1102 evidence is published, displayed, photographed, or livestreamed. Accordingly, Defendant’s objection to the electronic media request on this basis is overruled.

c. Defendant has not shown that electronic media coverage will create a constitutionally significant distraction or courtroom disruption

Defendant argues that allowing electronic media coverage will turn the preliminary hearing into a “reality TV show,” distracting the participants and adding pressure to their performance in court. In *Sheppard v. Maxwell*, the Supreme Court condemned the “carnival atmosphere” the trial judge allowed to occur in the courtroom during the petitioner’s trial. The Supreme Court held that the trial judge had remedial measures within his power to prevent inflammatory publicity of the proceedings.

This court has already taken remedial measures to reduce the risk of a “reality TV show” or “carnival atmosphere” in the courtroom by enacting a strong decorum order and regulating the seating of observers and placement of video cameras in the courtroom.

There is no doubt that participants in the proceedings will be under pressure during the preliminary hearing, but the presence or absence of cameras in the courtroom will not change the rules of evidence and what is admissible or inadmissible in the record. The court intends to focus the attorneys on the determination of probable cause. The court will enforce the applicable evidentiary rules and will address objections to irrelevant, cumulative, unduly prejudicial, or improperly presented material as they arise.

Accordingly, Defendant has not shown that electronic media coverage of the preliminary hearing will create a carnival atmosphere such that Defendant’s due process rights will be violated. His objection on this basis is overruled.

d. Defendant has not identified specific witness, participant, safety, or privacy concerns

Defendant objects to the *procedure* for adjudicating electronic media requests because it does not allow for an opportunity for witnesses to object to livestreaming based upon privacy or

security concerns. Defendant has not specified which witnesses have privacy or security concerns or what those concerns are. The court nevertheless recognizes that a witness, victim, party, or other affected person may have a specific safety, privacy, or well-being concern that is not apparent from the current briefing. Any such concern may be raised before or during the hearing, and the court will consider targeted limits on electronic capture before the person is recorded or photographed where practicable. Because Defendant has not been particular about any harm created by the court's scheduling order, Defendant's objection is overruled on this basis.

e. The court reserves ruling on whether exhibits may be livestreamed or photographed

Defendant argues that allowing video recording or photography of exhibits will allow the media to disseminate them to the public in violation of the stipulation of the parties and the court's order that the media and the public will not be allowed "behind the bar" to inspect or examine exhibits.

The court reserves ruling on Defendant's objection. The parties are ordered to meet and confer about each exhibit that will potentially be admitted at the preliminary hearing before the hearing begins. The parties are ordered to try and reach an agreement on which exhibits should not be allowed to be captured by video or photography. If there are remaining disputes, the parties may raise an objection when the exhibit is admitted and before it is displayed, described in detail, photographed, or livestreamed in open court. Members of the media who are recording or photographing the proceedings must comply with the court's orders and may not record or photograph any exhibit the court orders excluded from electronic capture. Electronic coverage must not capture sealed matters, privileged material, juror information, protected witness information, or counsel-table communications. The court may require the livestream to avoid, pause, or redirect from exhibits while objections are resolved.

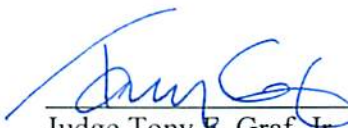
Nothing in this order prevents Defendant, the State, or another affected person from raising a specific objection during the preliminary hearing if electronic coverage creates a concrete risk to safety, privacy, privilege, fair-trial rights, or the integrity of the record. The court will consider any such objection before publication or capture where practicable.

Accordingly, the court reserves ruling on Defendant's objection to electronic capture of the exhibits.

For the foregoing reasons, Defendant's objection to the Deseret News's still photography request for July 6, 2026, is **SUSTAINED**. His objections to all other electronic media requests are **OVERRULED**. His objections to the capture of exhibits admitted at the hearing are **RESERVED**. This ruling is based on the present record and may be revisited if specific circumstances materially change.

Dated this 30th day of June, 2026.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge



CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

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06/30/2026

/s/ TREENA HANSEN

Date: _____

Signature